

Iqbal Hussain v. Pashchaminchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 17 May 2022 · Writ-C No. 6417 of 2022 · **Writ disposed; liberty to file Para 6.8 objection; coercive stay granted**

HEADNOTE

Without examining the merits of a writ against a demand letter, the Allahabad High Court granted liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directed the distribution licensee to decide it after hearing within the next four weeks, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Iqbal Hussain approached the Allahabad High Court seeking certiorari to quash letter no. 3697/Vidyut Vitran Khand-II Vi/Court-Case dated 8 September 2021 issued by respondent no. 2 of Pashchaminchal Vidyut Vitran Nigam Ltd., and mandamus to decide his applications dated 20 August 2021 and 25 August 2021. Counsel for the distribution licensee stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8 objection as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the licensee was directed to decide any such objection in accordance with law within the next four weeks after a reasonable opportunity of hearing; coercive action on the impugned demand was stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy A writ challenging a demand letter was disposed without merits by relegating the consumer to a fresh Para 6.8 objection, with a time-bound hearing and a short stay of coercive recovery. ¶ 1

alternative-remedy-statutory-appeal-6.8 The High Court accepted the licensee's statement that an objection to the demand would be decided in accordance with law and sent the consumer to the Para 6.8 forum rather than quashing the demand or issuing mandamus on the pending applications. ¶ 1

fresh-objection-under-clause-6.8 Liberty was given to file a Para 6.8 objection within four weeks, to be decided after hearing; the pending applications of 20 and 25 August 2021 were not themselves decided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE IMPUGNED DEMAND LETTER DATED 8.9.2021 AND OF THE APPLICATIONS DATED 20.8.2021 AND 25.8.2021

The Court expressly declined to express any opinion on the merits. ¶ 1